

Court No. - 2

Case :- WRIT - C No. - 4107 of 2022

Petitioner :- Rajendra Bahadur Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Santosh Kukmar Tiwari

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Hon'ble Ajai Tyagi, J.

Pleadings be completed on or before 4.4.2022.

List on 4.4.2022 as fresh.

Order Date :- 25.2.2022

Mukesh

Court No. - 3

Case :- WRIT - C No. - 4107 of 2022

Petitioner :- Rajendra Bahadur Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Santosh Kukmar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Santosh Kukmar Tiwari, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"i) Issue a writ order direction in the nature of certiorari quashing the demand notice dated 07.02.2020 issued by Executive Engineer Purvanchal Vidyut Vitaran Nigam Limited Dist. Prayagraj of Rs 3,30,174 against the petitioner.

ii) Issue a writ order direction in the nature of mandamus commanding and directing the respondent not to adopt any coercive step against the petitioner in pursuance of the recovery of the aforesaid dues of electricity bill. Any other suitable writ, order of direction which this Hon'ble Court may deem fit and proper in the Circumstances of the case."

Sri Narendra Kumar Tiwari, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 27.5.2022

NLY